MEZO SURGERY: FACILITY AGREEMENT

BETWEEN

CONSULT FOR AFRICA MANAGEMENT SERVICES LIMITED (RC: 9580329), a company incorporated under the Companies and Allied Matters Act 2020, with its registered office at 2 Tom Ogboi Avenue, Lekki Phase 1, Lagos, trading as **Mezo** and, for the purposes of this Agreement, as **Mezo Surgery** ("**Mezo**")

AND

_____ **LIMITED** (RC: _____), the operator of _____, of _____ (the "**Facility**")

(each a "**Party**", together the "**Parties**")

DATED _____ **2026**

RECITALS

A. Mezo Surgery sells planned surgery to patients at one fixed, all-in price agreed before the operation. The patient contracts with and pays Mezo.

B. The Facility has been assessed against the Mezo Network Facility Assessment Criteria and approved to host surgery at the Surgical Tier and for the procedures set out in Schedule 1.

C. This Agreement sets the terms on which the Facility provides its theatres, wards and services for Mezo Surgery Cases. It is separate from any Facility Partnership and Licence Agreement under which the Facility hosts consultations booked on the Mezo platform, and it governs surgical Cases.

1. DEFINITIONS

Terms defined in the Mezo Surgery Surgeon Engagement Contract (including **All-in Price**, **Case**, **Case Bundle**, **Episode of Care**, **Mezo-sourced Patient**, **Outlier** and **Surgeon-owned Facility**) have the same meaning here. In addition:

"Approved Scope" means the Surgical Tier and the list of approved procedures in Schedule 1.

"Assessment Criteria" means the Mezo Network Facility Assessment Criteria, version 2026-10-v1, or a later version notified under Clause 3.4.

"Facility Fee" means the fee payable to the Facility for a Case under Schedule 2.

"Facility Services" means the services in Clause 4.

"Partner Surgeon" means a surgeon engaged by Mezo under a Mezo Surgery Surgeon Engagement Contract and holding an active Privilege for the procedure at this Facility.

2. CONDITION AND SCOPE

2.1 This Agreement takes effect on the date the Facility is approved under the Assessment Criteria and both Parties have signed it.

2.2 Mezo shall book at the Facility only Cases within the Approved Scope. A procedure outside it needs a focused reassessment and a written variation of Schedule 1.

2.3 The arrangement is non-exclusive. Mezo is not obliged to book any minimum number of Cases, and the Facility remains free to treat its own patients.

3. STANDARDS

3.1 The Facility shall meet every minimum requirement in Part A of the Assessment Criteria at all times, and maintain the standard on which its Surgical Tier was granted.

3.2 The Facility shall tell Mezo within forty-eight (48) hours if any minimum requirement lapses. Mezo may stop booking surgery at the Facility until it is restored, and Cases already booked shall be moved or postponed with the patient's agreement.

3.3 The Facility shall allow reassessment every twelve (12) months, at least one unannounced visit a year, and a triggered review under Part D of the Assessment Criteria. The Facility receives the full score sheet each time. A review may move the Facility to a lower Tier, and Schedule 1 shall change accordingly.

3.4 Mezo may update the Assessment Criteria on ninety (90) days' written notice. A new requirement applies to the Facility from its next reassessment.

4. FACILITY SERVICES

For each Case the Facility shall provide, as the Case Bundle specifies:

(a) theatre time on the booked date, with the theatre team, sterile instruments and the equipment the procedure needs;

(b) a recovery bed and ward or day-case bed for the stay in the Case Bundle, with nursing to the ratios scored at assessment;

(c) standard consumables and medicines, and implants where the Case Bundle provides they come from the Facility;

(d) laboratory, imaging, blood and pharmacy services the Case needs;

(e) high dependency care, and intensive care or transfer to it, in line with its Approved Scope;

(f) catering, cleaning, security and the other services of an ordinary admission.

5. WHAT MEZO DOES

5.1 Mezo sets the All-in Price, agrees it with the patient, collects payment, and handles any HMO or insurer pre-authorisation and claim.

5.2 Mezo engages and pays the Partner Surgeon and the anaesthetist for each Case, and confirms their Privileges for the Facility before the Case is booked.

5.3 Mezo gives the Facility, at least seventy-two (72) hours before the operation save in agreed urgent cases, the patient's details, the procedure, the Case Bundle and any special requirements.

5.4 The Facility shall not charge a Mezo Surgery patient, or the patient's family, for anything covered by the Case Bundle, and shall refer any request for an extra service to Mezo before providing it.

6. FEES AND PAYMENT

6.1 For each Case, Mezo shall pay the Facility the Facility Fee in Schedule 2 for the procedure. The Facility Fee is fixed once the All-in Price is agreed with the patient, save under Clause 7.

6.2 Mezo shall pay the Facility Fee by bank transfer within the period in Schedule 2 after discharge for a Case paid by the patient in advance, and after Mezo receives payment for a Case funded by an HMO or insurer.

6.3 Withholding tax is deducted at the statutory rate and a receipt provided. Value Added Tax is added where it applies. Mezo shall give the Facility a monthly statement of Cases, fees and deductions.

7. OUTLIERS, COMPLICATIONS AND RETURN TO THEATRE

7.1 Where a Case becomes an Outlier under the Case Bundle's rules, the additional services are charged to Mezo at the rates in Schedule 2, and Mezo deals with the patient.

7.2 A return to theatre or a readmission within the Episode of Care arising from the index operation is charged to Mezo at the reduced rate in Schedule 2, and not to the patient.

7.3 **Facility-attributable events.** No charge is made to Mezo or the patient for care needed because of a failure in the Facility Services, including equipment failure, a power failure, a lapse in sterilisation or infection control, or a medication error by Facility staff. The Facility shall carry that cost.

7.4 The Facility shall report any serious incident or unexpected death involving a Mezo patient to Mezo within twenty-four (24) hours, and take part in Mezo Surgery's morbidity and mortality review.

8. SURGEON-OWNED FACILITIES

8.1 Where the Facility is a Surgeon-owned Facility, the Facility shall name the surgeon and the nature and size of the interest in Schedule 1, and notify any change within fourteen (14) days.

8.2 Mezo decides where each Case is done, on the patient's needs, the patient's choice, safety and value. The Facility shall not seek, and the surgeon shall not require, that Cases be placed here because of the interest.

8.3 Before a Case is booked here, the patient is told in writing of the surgeon's interest and may ask for another Partner Facility.

8.4 A return to theatre or a readmission within the Episode of Care is carried by the Facility at no charge to Mezo or the patient, in place of Clause 7.2.

8.5 The Facility is assessed, reassessed and reviewed by an assessor with no interest in it, and its outcomes are reviewed by a clinician with no interest in it.

8.6 The Facility Fee is paid to the Facility and never forms part of the surgeon's fee.

9. RECORDS, OUTCOMES AND DATA

9.1 The Facility holds the clinical record of each Case, and shall give Mezo and the Partner Surgeon the records needed for the patient's care, for administering the Case and the claim, for outcome

recording, and for answering any complaint or claim.

9.2 The Facility shall record the outcome measures Mezo Surgery uses for each procedure, including complications, returns to theatre, readmissions and infections.

9.3 Each Party shall comply with the Nigeria Data Protection Act 2023. Mezo may publish outcome data in aggregate. Data identifying the Facility's own results shall be published only with the Facility's written approval, and data identifying a patient never.

10. MEZO-SOURCED PATIENTS

10.1 For twelve (12) months from the Case, the Facility shall not market to a Mezo-sourced Patient, or book the patient directly, for the same procedure outside Mezo Surgery.

10.2 This does not restrict a patient's own free choice, emergency care, or unrelated care the patient seeks from the Facility.

11. INSURANCE AND LIABILITY

11.1 The Facility shall hold public liability insurance and shall ensure every clinician it employs or engages holds professional indemnity cover, and shall produce evidence on request.

11.2 The Facility is responsible for its premises, equipment, staff and Facility Services, and shall indemnify Mezo against claims arising from them, to the extent not caused by Mezo or a Partner Surgeon.

11.3 Mezo is responsible for its own obligations under this Agreement. A Partner Surgeon's responsibility for the surgeon's own clinical acts is governed by the Surgeon Engagement Contract.

12. TERM, SUSPENSION AND TERMINATION

12.1 This Agreement runs for twelve (12) months from the date in Clause 2.1 and renews for further twelve-month periods, provided the Facility passes reassessment.

12.2 Either Party may end this Agreement on sixty (60) days' written notice.

12.3 Mezo may suspend bookings at once on a patient-safety concern or a lapse under Clause 3.2, giving reasons in writing, and may end this Agreement at once if the Facility's registration lapses, if a minimum requirement is not restored within thirty (30) days, or for a serious breach.

12.4 On termination, the Facility shall complete or safely transfer every open Case, and Clauses 7.3, 9, 10 and 11 survive.

13. DISPUTES AND GENERAL

13.1 Disputes shall first go to the Parties' senior management for fourteen (14) days, then to mediation at the Lagos Multi-Door Courthouse for up to thirty (30) days, then to arbitration by a sole arbitrator under the Lagos Court of Arbitration rules, seated in Lagos, under the Arbitration and Mediation Act 2023.

13.2 This Agreement is governed by the laws of the Federal Republic of Nigeria. It may be signed electronically and in counterparts. No variation is effective unless in writing and signed by both Parties. It does not create a tenancy, partnership or joint venture.

SCHEDULE 1: THE FACILITY AND ITS APPROVED SCOPE

Item	Detail
Facility name and address	
State registration body and number	
Medical director and MDCN folio	
Date of assessment and assessor	
Overall score and domain scores	
Surgical Tier approved	
Approved procedures	
Theatres, recovery beds, ward beds, high dependency and intensive care	
Intensive care transfer arrangement (where not on site)	
Corrective plan and due date (if conditionally approved)	
Surgeon-owned Facility: surgeon, nature and size of interest	
Named contact for Mezo bookings	

SCHEDULE 2: COMMERCIAL TERMS

Item	Term
Facility Fee, per procedure	[Per the attached fee table, one line per approved procedure]
Payment, patient-paid Case	[ ] working days after discharge
Payment, HMO or insurer-funded Case	[ ] working days after Mezo receives payment
Outlier rates (intensive care day, extra ward day, device upgrade)	[ ]
Return to theatre or readmission within the Episode of Care	[ ] per cent of the usual rate (nil for a Surgeon-owned Facility)

EXECUTION

For CONSULT FOR AFRICA MANAGEMENT SERVICES LIMITED, trading as Mezo:

Name: _____ Title: _____

Signature: _____ Date: _____

For the Facility:

Name: _____ Title: _____

Signature: _____ Date: _____